

FIRST ENDORSEMENT

Chief Prosecutor Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr., Department Advocate's Office, October 30, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2024-30981 against Police Officer Rafael Payano, Tax Registry No. 965401. This case was conferenced on October 24, 2024, before Assistant Deputy Commissioner of Trials Anne Stone, who approved the negotiated penalty of a Command Discipline Schedule A and the total forfeiture of five (5) vacation days, after Police Officer Payano accepted the findings of substantiation of the allegations contained in the Charges and Specifications dated June 28, 2024. Charges and Specifications are dismissed for plea purposes.

Andre Applewhite

Andre Applewhite
Chief Prosecutor
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2024-30981
BOOK & PAGE NO. Page 1 of 2
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, PAYANO	FIRST RAFAEL	M.I.	COMMAND TRANSIT DIVISION DISTRICT 4
SHIELD NO. 27619	TAX REGISTRY NO. 965401	SOCIAL SECURITY NO.		DATE APPOINTED 01/10/2018
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Rafael Payano, on or about February 28, 2023, at approximately 0900, while assigned to Transit District 4 and on duty, in the vicinity of the 125th Street Subway Station on the 4, 5, and 6 line, located at East 125th Street and Lexington Avenue, New York County, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department in that he was discourteous to § 87(2)(b) by stating in sum and substance, "I don't want to hear that shit right now," without police necessity.	DISMISSED	VACATION DAYS 5.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2. Police Officer Rafael Payano, on or about February 28, 2023, at approximately 0900, while assigned to Transit District 4 and on duty, in the vicinity of the 125th Street Subway Station on the 4, 5, and 6 line, located at East 125th Street and Lexington Avenue, New York County, used offensive language regarding § 87(2)(b) actual or perceived disability, by referring to § 87(2)(b) complaints of chronic seizures as his "medical seizure ass," without police necessity.	DISMISSED	A - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated.

100K

FIRST DEPUTY COMMISSIONER

1/2/25

DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
- ☐ Disapproved
- ☐ Other Action (Describe)

Jessie Jeser 1/28/25

POLICE COMMISSIONER

DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
2024-30981

BOOK & PAGE NO.
Page 2 of 2

PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, PAYANO	FIRST RAFAEL	M.I.	COMMAND TRANSIT DIVISION DISTRICT 4
SHIELD NO. 27619	TAX REGISTRY NO. 965401	SOCIAL SECURITY NO.		DATE APPOINTED 01/10/2018

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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
3. Police Officer Rafael Payano, on or about February 28, 2023, at approximately 0900, while assigned to Transit District 4 and on duty, in the vicinity of the 125th Street Subway Station on the 4, 5, and 6 line, located at East 125th Street and Lexington Avenue, New York County, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department in that he was discourteous to § 87(2)(b) throughout their interaction and used curse words and belittling language towards § 87(2)(b) without police necessity.	DISMISSED	
4. Police Officer Rafael Payano, on or about February 28, 2023, at approximately 0900, while assigned to Transit District 4 and on duty, in the vicinity of the 125th Street Subway Station on the 4, 5, and 6 line, located at East 125th Street and Lexington Avenue, New York County, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department in that he was discourteous to § 87(2)(b) by stating in sum and substance, "medical seizure ass," without police necessity.	DISMISSED	
5. Police Officer Rafael Payano, on or about February 28, 2023, at approximately 0900, while assigned to Transit District 4 and on duty, in the vicinity of the 125th Street Subway Station on the 4, 5, and 6 line, located at East 125th Street and Lexington Avenue, New York County, abused his authority as a member of the New York City Police Department, in that he improperly used his body-worn camera by not activating his Body Worn Camera device at the beginning of this incident.	DISMISSED	


FIRST DEPUTY COMMISSIONER

1/2/25
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
- ☐ Disapproved
- ☐ Other Action (Describe)


POLICE COMMISSIONER

1/28/25
DATE

1DC #2024-3685

THIRD ENDORSEMENT

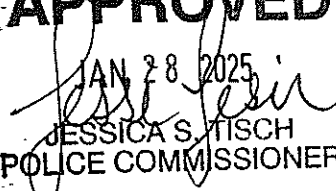
First Deputy Commissioner to Police Commissioner January 2, 2025. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2024-30981 (PODS Case No. C-030896) against Police Officer Rafael Payano, Tax No. 965401, with the recommendation that Charges and Specifications against Police Officer Payano be dismissed and that Police Officer Payano receive a Schedule "A" Command Discipline, with the forfeiture of five (5) vacation days; I concur. **FOR YOUR APPROVAL.**



Tania V. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/jpc

APPROVED
JAN 28 2025

JESSICA S. TISCH
POLICE COMMISSIONER